



EMPLOYER ENGAGEMENT QUICK GUIDE

APPRENTICESHIP AND CAREER PATHWAYS RELATED LEGISLATION

The Americans with Disabilities Act (ADA) became law in 1990. It prohibits discrimination against individuals with disabilities in all areas of public life, including jobs, schools and all public and private places that are open to the general public. The law ensures that people with disabilities have the same rights and opportunities as everyone else. The ADA gives civil rights protections to individuals with disabilities similar to those provided to individuals on the basis of race, color, sex, national origin, age, and religion. It guarantees equal opportunity for individuals with disabilities in public accommodations, employment, transportation, state and local government services, and telecommunications.

(source: <https://adata.org/learn-about-ada>)

The Individuals with Disabilities Education Act (IDEA) became law in 1975 (originally the Education for All Handicapped Children Act [EHA]). It governs the education of students with disabilities and related services to ensure that public schools serve the educational needs of students with disabilities by providing them with special education services. This law has very specific requirements, the main focus of which is to guarantee a free appropriate public education (FAPE) to these students. The law also ensures that the unique needs of students with disabilities are met as they are prepared for higher education, employment, and of course independent living.

(source: www.seewritehear.com/learn/individuals-with-disabilities-education-act-idea/)

Section 504 of the 1973 Rehabilitation Act was the first disability civil rights law to be enacted in the United States. It prohibits discrimination against people with disabilities in programs that receive federal financial assistance and set the stage for enactment of the Americans with Disabilities Act.

(source: www.ada.gov/cguide.htm)

The Workforce Innovation and Opportunity Act (WIOA) became law in 2014. WIOA is designed to help job seekers access employment, education, training, and support services to succeed in the labor market and to match employers with the skilled workers they need to compete in the global economy. WIOA Title IB, administered by the U.S. Department of Labor's Employment and Training Administration (ETA), provides funding to support workforce development programs for eligible Adults, Dislocated Workers, and Youth. This funding is allotted to states based on a formula, generally administered through local Workforce Development Boards, and is supportive of apprenticeship because local Workforce Development Boards can use Title IB funds to help support the two primary components of apprenticeship programs: On-the-Job Learning (OJL), also referred to as On-the-Job Training (OJT), and Related Training and Instruction (RTI). WIOA funding can also help provide support services necessary to enable individuals to successfully participate in apprenticeship programs such as tools, books, and uniforms.

(source: www.apprenticeship.gov/investments-tax-credits-and-tuition-support/workforce-innovation-and-opportunity-act)

The Strengthening Career and Technical Education for the 21st Century Act (Perkins V) became law in 2018. It reauthorizes and updates the Carl D. Perkins Career and Technical Education Act of 2006 to ensure career and technical education (CTE) programs meet the demands of the twenty-first-century economy. The new law includes several changes and additions relevant for educators, postsecondary institutions, employers, workforce development boards, community-based organizations, and others who serve historically underserved students in both secondary and postsecondary education.

(source: <https://all4ed.org/perkins/>)

The Coronavirus Aid, Relief, and Economic Security (CARES) Act was passed in 2020. It allotted \$2.2 trillion to provide fast and direct economic aid to the American people negatively impacted by the COVID-19 pandemic. Of that money, approximately \$14 billion was given to the Office of Postsecondary Education as the Higher Education Emergency Relief Fund, or HEERF so that schools continue to provide special education and related services even if schools operate through distance education.

(full text available at: <https://www.congress.gov/116/plaws/publ136/PLAW-116publ136.pdf>)

The Final Rule for Apprenticeship Equal Employment Opportunity (EEO) was updated in 2017 and opens more doors to apprenticeship programs for traditionally under-represented groups, including people with disabilities. The final rule expands the requirements to include affirmative action obligations on the basis of disability, including a 7 percent utilization goal for individuals with disabilities in apprenticeship programs. The Final Rule also establishes a mechanism to request applicants and apprentices to self-identify as having a disability.

(full text available at: <https://www.doleta.gov/oa/eeo/>)